



CLEARWATER COUNTY COURT SYSTEM

Sixth Judicial Circuit | Office of the Clerk of the Circuit Court
Criminal Justice Center, 14250 Court Street, Clearwater

FORM CR-12
FILED BY THE DEFENSE
REV. 08/2026

IN THE COUNTY / CIRCUIT COURT OF THE SIXTH JUDICIAL CIRCUIT
IN AND FOR CLEARWATER COUNTY

MOTION TO SUPPRESS EVIDENCE

Ask the Court to exclude evidence obtained unlawfully

THE STATE OF FLORIDA THE STATE OF FLORIDA VS. DEFENDANT Marcus D. Reeves Full name of party	CASE NUMBER (UCN) 26-CF-000418 Format: 26-CF-000123 (YY - TYPE - NUMBER) DIVISION JUDGE / HEARING OFFICER Criminal Hon. Hollis T. Marren CF felony MM misdem. CT crim. traffic TR traffic CC civil SC small claims
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HOW TO USE THIS FORM

Use this when police got evidence in a way you believe broke the rules - a stop without reasonable suspicion, a search without a warrant or consent, or a statement taken without Miranda. Identify the exact evidence you want excluded and the exact rule you say was broken. Vague motions get denied.

The defendant, by and through undersigned counsel, moves this Court to suppress the evidence identified below and as grounds states:

EVIDENCE AT ISSUE

DATE OF SEARCH / SEIZURE / STATEMENT	LOCATION	OFFICER(S) INVOLVED
08/14/26 09:00	Dock Road at Marina Way	Dep. A. Vance, Dep. R. Salas

ITEMS SOUGHT TO BE SUPPRESSED

NO.	ITEM OR STATEMENT	HOW OBTAINED	GROUND
1	Enter details	Enter details	Enter details
2	Enter details	Enter details	Enter details
3	Enter details	Enter details	Enter details
4	Enter details	Enter details	Enter details
5	Enter details	Enter details	Enter details

LEGAL GROUNDS ASSERTED

☐ Stop made without reasonable suspicion	☐ Arrest made without probable cause
☐ Search conducted without a warrant	☐ Warrant lacked probable cause
☐ Warrant lacked particularity	☐ Search exceeded the scope of the warrant
☐ Consent was not voluntarily given	☐ Consent was withdrawn and ignored
☐ No valid exception to the warrant requirement	☐ Miranda warnings not given
☐ Statement taken after right to counsel invoked	☐ Statement was involuntary or coerced
☐ Chain of custody was broken	☐ Fruit of an earlier unlawful act

STATEMENT OF FACTS

WHAT ACTUALLY HAPPENED, IN CHRONOLOGICAL ORDER, WITH CITATIONS TO THE AFFIDAVIT OR VIDEO

On 14 August 2026 at approximately 21:40 hours I observed a white 2018 Vapid Sandstorm, bearing plat

ARGUMENT

WHY THE FACTS ABOVE VIOLATE THE RULE YOU IDENTIFIED, AND WHY THE EVIDENCE MUST BE EXCLUDED

A traffic stop must be supported by reasonable suspicion of a specific violation. Here the deputy's

RELIEF REQUESTED

STATE EXACTLY WHAT YOU WANT THE COURT TO ORDER

1. The Motion is GRANTED.

2. The statement taken on 14 August 2026 is suppressed and may not be used

HEARING REQUEST

- ☐ Evidentiary hearing requested
- ☐ Officer testimony required
- ☐ Body camera footage to be played
- ☐ Motion may be decided on the papers

CERTIFICATE OF SERVICE: I certify that a copy of this motion was furnished to the Office of the State Attorney on the date written below.

Grant Whitlow

DEFENSE COUNSEL

Bar number

PRINTED NAME

Grant Whitlow

DATE

09/10/26

RULING OF THE COURT

☐

MOTION GRANTED

The identified evidence is suppressed and may not be used by the State at trial.

☐

MOTION GRANTED IN PART

Suppressed as to the items noted below; denied as to the remainder.

☐

MOTION DENIED

The evidence was lawfully obtained and is admissible.

☐

HEARING SET

An evidentiary hearing is scheduled for the date below.

HEARING DATE

09/10/26

TIME

09:00

ITEMS SUPPRESSED

Statement of 08/14/2026

FINDINGS OF FACT AND CONCLUSIONS OF LAW

A traffic stop must be supported by reasonable suspicion of a specific violation. Here the deputy's

Hollis T. Marren

JUDGE

Sixth Judicial Circuit

PRINTED NAME

Hollis T. Marren

DATE

09/10/26